

2015 WL 6618607 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Kings County

Rafael BRERETON, Plaintiff,

v.

THE CITY OF NEW YORK, Donald Daal and **Kevin McCarthy**, Defendants.

No. 0012652-2015.
October 20, 2015.

Summons

[Edward Sivin](#), Sivin & Miller, LLP, 20 Vesey St., Suite 1400, New York, NY 10007, (212) 349-0300, for plaintiff.

To the above named defendant(s) :

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiffs attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York October 12, 2015

VERIFIED COMPLAINT

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Kings, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter "the City") operated, controlled, managed, and maintained the New York Police Department (hereinafter the "NYPD").
3. That at all times herein mentioned, defendant Donald Daal (hereinafter "Daal") was and is an officer employed by the NYPD.
4. That at all times herein mentioned, Daal was acting within the course and scope of his employment with the NYPD.
5. That at all times herein mentioned, Daal was acting under color of state law.
6. That at all times herein mentioned, defendant **Kevin McCarthy** (hereinafter "McCarthy") was and is an officer employed by the NYPD.
7. That at all times herein mentioned, McCarthy was acting within the course and scope of his employment with the NYPD.

8. That at all times herein mentioned, McCarthy was acting under color of state law.

THE FACTS

9. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

10. That on August 25, 2014, in the County of Kings, City and State of New York, NYPD officers, including Daal and McCarthy (hereinafter “the officers”), without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed a crime, criminal offense or violation, and without otherwise being justified, forcibly searched and seized plaintiff, choked him, threw him against a vehicle, placed him in handcuffs, and otherwise used force against plaintiff without justification.

11. That after seizing plaintiff, the officers arrested and imprisoned plaintiff, again without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed a crime, criminal offense or violation, and caused plaintiff to be imprisoned at various locations, including a police vehicle, police precinct, Central Booking, and Riker's Island Correctional Facility.

12. That the aforementioned actions by the officers were intentional and malicious in nature.

13. That each of the officers observed his fellow officer engage in the aforementioned conduct, each had an opportunity to intervene to stop or prevent said conduct, and each intentionally failed and refused to intervene to stop or prevent said conduct by his fellow officer.

14. That on or about August 26, 2014, plaintiff was granted an adjournment in contemplation of dismissal with respect to criminal charges brought against him by the officers, and on or about February 25, 2015 all criminal charges against plaintiff were dismissed.

15. That as a result of the aforementioned actions by the officers, plaintiff sustained physical and psychological injuries, endured and will continue to endure pain and suffering, loss of liberty, and loss of enjoyment of life, incurred and will continue to medical expenses and other economic loss, and was otherwise damaged.

FIRST CAUSE OF ACTION AGAINST DEFENDANTS DAAL and MCCARTHY

(42 USC § 1983 Claim Arising From Fourth and Fourteenth Amendment Violations)

16. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

17. That the aforementioned actions of defendants Daal and McCarthy constitute illegal searches and seizures and deprivation of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth Amendment and Fourteenth Amendments to the US Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

SECOND CAUSE OF ACTION AGAINST THE CITY

(“Monell” Claims)

18. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

19. That the aforesaid actions by the officers were consistent with and in compliance with an authorized pattern and practice of the NYPD whereby persons of color would be stopped, questioned, frisked, detained, arrested, and charged with crimes by NYPD officers without probable cause, without reasonable suspicion, and without justification, and entitle plaintiff to recover damages under [42 U.S.C. § 1983](#).

20. That the aforesaid incidents and resulting damage to plaintiff were due to a deliberate indifference by the City to a pattern of unconstitutional conduct by the officers, including Daal and McCarthy, and entitle plaintiff to recover damages under [42 U.S.C. § 1983](#).

21. That all of the foregoing causes of action fall within one or more of the exceptions set forth in [CPLR § 1602](#) with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Daal and McCarthy, and attorneys' fees against all defendants pursuant to [42 USC § 1988](#), and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York October 12, 2015

Yours, etc,

SIVIN & MILLER, LLP

By

Edward Sivin

Attorneys for plaintiff

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New York, NY 10007

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